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CHAPTER 19

GOOD REGULATORY PRACTICES

ARTICLE 19.1

General principles

1. Each Party shall be free to determine its approach to good regulatory practices under this Agreement in a manner consistent with its own legal framework, practice and fundamental principles, including the precautionary principle, underlying its regulatory system.
2. Nothing in this Chapter shall be construed as to require a Party to:
 - (a) deviate from domestic procedures for preparing and adopting regulatory measures,
 - (b) take actions that would undermine or impede the timely adoption of regulatory measures to achieve its public policy objectives, or
 - (c) achieve any particular regulatory outcome.
3. This Chapter does not apply to regulatory authorities and regulatory measures, practices or approaches of the Member States of the European Union.

This Chapter does not apply to regulatory authorities and regulatory measures, practices or approaches of the provinces, regencies and municipalities of the Government of Indonesia.

ARTICLE 19.2

Definitions

For the purposes of this Chapter:

- (a) "regulatory authority" means:
 - (i) for the European Union: the European Commission; and
 - (ii) for Indonesia: the Central Government of Indonesia.
- (b) "regulatory measures" means:
 - (i) for the European Union:

- (A) regulations and directives, as provided in Article 288 of the Treaty on the Functioning of the European Union (TFEU); and
- (B) implementing and delegated acts, as provided in Article 290 and Article 291 TFEU, respectively;
- (ii) For Indonesia:
 - (A) laws;
 - (B) government regulations ; and
 - (C) Presidential Regulations and Ministerial Regulations to the extent that the laws provide an empowerment for such measures.

ARTICLE 19.3

Scope

This Chapter shall apply to regulatory measures by regulatory authorities in respect to any matter covered by this Agreement.

ARTICLE 19.4

Internal coordination of regulatory development

Each Party shall maintain internal coordination processes or mechanisms with respect to regulatory measures that its regulatory authorities are preparing. Such processes or mechanisms should seek, inter alia, to:

- (a) foster good regulatory practices, including those set forth in this Chapter;
- (b) identify and avoid unnecessary duplication and inconsistent requirements in the Party's regulatory measures;
- (c) ensure compliance with international trade and investment obligations; and
- (d) promote consideration of the impacts of the regulatory measures under preparation, including those on small and medium-sized enterprises.

ARTICLE 19.5

Regulatory processes and mechanisms

Each Party shall make publicly available descriptions of the processes and mechanisms used by its regulatory authority to prepare, evaluate or review regulatory measures. These descriptions shall refer to relevant guidelines, rules or procedures, including those regarding opportunities for the public to provide comments.

ARTICLE 19.6

Early information on planned regulatory measures

1. Each Party shall make publicly available at least on an annual basis a list of planned major regulatory measures that its regulatory authorities reasonably expect to adopt within a year.
2. With respect to each major regulatory measure included in the list referred to in paragraph 1, each Party should make publicly available, as early as possible:
 - (a) a brief description of its scope and objectives; and
 - (b) as appropriate, the estimated timing for its adoption, including opportunities for public consultations.

ARTICLE 19.7

Public consultations

1. When preparing a major regulatory measure, each Party shall, in accordance with its respective rules and procedures:
 - (a) publish either the draft regulatory measures or consultation documents providing sufficient details about regulatory measures under preparation to allow any person to assess whether and how the person's interests might be significantly affected;
 - (b) offer reasonable opportunities for any person, on a non-discriminatory basis, to provide comments; and
 - (c) consider the comments submitted, provided that they are relevant for the consultation.
2. The regulatory authority of each Party should make use of electronic means of communication and seek to use and maintain a dedicated and, if available, single electronic portal for the purposes of providing information and receiving comments related to public consultations.
3. The regulatory authority of each Party shall endeavour to make publicly available a summary of the results of the consultations and shall make publicly available any relevant comments received, except to the extent necessary to protect confidential information or withhold personal data or inappropriate content.

ARTICLE 19.8

Impact assessment

1. The regulatory authority of each Party affirms its intention to carry out, in accordance with its respective rules and procedures, an impact assessment of major regulatory measures it is preparing.
2. When carrying out an impact assessment, the regulatory authority of each Party shall establish and maintain processes and mechanisms that promote the consideration of the following factors:
 - (a) the need for the regulatory measure, including the nature and the significance of the problem the regulatory measure intends to address;
 - (b) feasible and appropriate regulatory and, to the extent possible, non-regulatory alternatives including the option of not regulating, if any, that would achieve the Party's public policy objective;
 - (c) to the extent possible and relevant, the potential social, economic and environmental impact of those alternatives, including on international trade and investment and on small and medium-sized enterprises; and
 - (d) how the options under consideration relate to relevant international standards, if any, including the reason for any divergence, where appropriate.
3. With respect to any impact assessment that a regulatory authority has conducted for a regulatory measure, each Party shall prepare a final report detailing the factors it considered in its assessment and the relevant findings. Such reports shall be to the extent possible made publicly available no later than when the regulatory measure is made publicly available.

ARTICLE 19.9

Retrospective evaluation

1. The regulatory authority of each Party shall maintain processes or mechanisms to promote retrospective evaluations of regulatory measures in effect.
2. When conducting a retrospective evaluation the regulatory authorities of a Party shall consider among others whether there are opportunities to more effectively achieve public policy objectives and reduce unnecessary regulatory burdens, including on small and medium-sized enterprises.
3. Each Party shall make publicly available its plans for and the results of such retrospective evaluations.

ARTICLE 19.10

Regulatory register

Each Party shall ensure that regulatory measures that are in effect are published in a designated register that identifies regulatory measures by topic and that is publicly available through a freely accessible internet website. The website should allow searches for regulatory measures by citations or by word. Each Party shall periodically update its register.

ARTICLE 19.11

Exchange of information on Good Regulatory Practices

The Parties shall endeavour to exchange information on their good regulatory practices as set out in this Chapter.

ARTICLE 19.12

Dispute Settlement

Chapter 22 (Dispute Settlement) shall not apply to this Chapter.